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SHYLOCK: THE KNIGHT OF FAITH?

This essay on *The Merchant of Venice* and, in particular, the famous “trial” scene and the so called “forced conversion” of Shylock to Christianity, is part of a larger project on the vexed question of Shakespeare’s religion.¹ In stark contrast to most current studies that struggle to determine Shakespeare’s Catholicism or Protestantism within a strictly historical context, my intent is to illuminate for the first time Shakespeare’s fascination with the story of Abraham’s sacrifice of Isaac in Genesis 22, a fascination that when complexly mediated on the stage ultimately addresses—not the God of Renaissance Christianity—but a radical Otherness beyond or distinct from that particular onto-theological concept. My claim is that Shakespeare identifies something like what Jacques Derrida has identified in his philosophical explorations of the “Abrahamic” gift: a messianic structure and desire determining, but not necessarily equivalent to Judaism, Christianity, and Islam, a structure that demands an openness to the wholly other or a willingness to *give* oneself up to the absolutely other in a manner that defies reason or self interest.²

This “Abrahamic” messianic structure or openness to the other is actually most strikingly and famously realized in the western, philosophical tradition in Søren Kierkegaard’s reading of Genesis 22 in *Fear and Trembling*.³ As Kierkegaard reads the passage, for Abraham to truly respond to God’s demand to sacrifice Isaac, Abraham must kill Isaac without believing he will get anything in return—salvation, for example. Abraham must move towards the absolute other, God, without any sense of a deal having been struck. The exchange relationship implied in any reading that emphasizes obedience for salvation also implies

¹ See, also my “Is it God or the Sovereign Exception? Giorgio Agamben and Shakespeare’s *King John*,” *Religion and Literature* 38.3 (2006), 85-99; my “‘Here Aaron is’: Abraham and the Abrahamic in *Titus Andronicus*,” in *1453-1699: Cultural Encounters Between East and West*, eds. Matthew Birchwood and Matthew Dimmock (London: Cambridge Scholars Press, 2005), 145-167; and my “‘One Wish’ or the Possibility of the Impossible: Derrida, the Gift, and God in *Timon of Athens*,” *Shakespeare Quarterly* 52.1 (2001), 213-40.

² See, in particular, Jacques Derrida, *The Gift of Death*, trans. David Wills. (Chicago: University of Chicago Press, 1995). For recent, engaging readings that take Derrida’s later religious writings into account when addressing *The Merchant of Venice* see, in particular, Lowell Gallagher, “Waiting for Gobbo,” in *Spiritual Shakespeares*, ed. Ewan Fernie (London: Routledge, 2005), 73-93; and Henry Turner, “The Problem of the More-than-One: Friendship, Calculation, and Political Association in *The Merchant of Venice*,” *Shakespeare Quarterly* 57.4 (2006), 413-442.

³ *Fear and Trembling and Repetition: Kierkegaard’s Writings VI*, ed. and trans. Howard V. Hong and Edna Hong (Princeton: Princeton UP, 1983).

some level of equality and thus negates the “otherness” of the absolute other, the distinction of divine from human.

To further distinguish Abraham’s aneconomic movement from the economy of sacrifice or exchange, Derrida, in turn, identifies in Kierkegaard’s Abraham the figure of “the gift.” The gift as discussed in *The Gift of Death* is “the impossible,” the instant when the economic circle of exchange is interrupted and Abraham “gives” death (or almost gives death) without expecting anything from God in return, without—in some sense—even responding to God at all. The gift identifies that which is not an exchange, that which stands outside even a sacrificial economy—that which is absolutely other. The moment is (almost) impossible for us to think for Abraham must believe himself a murderer, indeed be a murderer, as well as a devout religious actor—in the same instant.

In this remarkable instance of the gift (of death), then, when Abraham must respond to God without even thinking of God’s call as a prompt, his religious passion and desire seems to collapse entirely into the secular. Abraham must act *religiously* without a divine presence or immanence or, importantly, even any sense of divine presence of immanence. This strange correspondence between the religious and the secular, I suggest, emerges in Shakespeare’s own rigorous and devout, albeit complexly mediated, explorations of Genesis 22; and, moreover, the fact that it does helps explain why so many have misrecognized Shakespeare’s openness to a radical otherness that eludes specific doctrinal designations as presciently and purely secular or ethical, rather than religious. Shakespeare famously never recognizes a divine presence or immanence, not because of a forward, modern looking, ethical sensibility, but because the absolute religious demands of Genesis 22 read seriously and devoutly preclude any such recognition. Simply put, Shakespeare read Genesis 22 seriously and devoutly before Kierkegaard or Derrida. Concentrating on the “Abrahamic” gift, then, allows us to see, simultaneously and without contradiction, the religious passion of Shakespeare *and* why the drama inspired by that passion still speaks so coherently to our (supposedly) secular world.

My working hypothesis: in a Christian culture that restricted religious representations on the stage (in contrast to the Medieval mystery plays that did dramatize directly the Abraham and Isaac episode), Shakespeare sought dramatically, but still religiously, what Derrida seeks philosophically: the impossible other, the Abrahamic gift. Shakespeare’s world had little theoretical language to discuss otherness or alterity as we do, but the Reformation prompted an intensified need to define its religious “truth” against others and we discover there a multitude of what Gil Anidjar calls “Abrahamic elaborations” to separate Christian from Jew and Muslim leading to a rather intricate explanatory system of the otherness of the Abrahamic gift.⁴ Within the Christian world, too, we note, Protestantism’s effort to distinguish itself from Catholicism led to an intensified critique of the exchange principles that seemed

⁴ See Anidjar’s provocative introduction to Jacques Derrida, *Acts of Religion* (New York: Routledge, 2002).

to inform the Augustinian concept of *caritas* (charity/perfect love). The Protestant was told repeatedly to seek to “give” perfectly—that is, without any expectation of “Catholic” reward for “merit.”⁵

The religion of Shakespearean drama, if not the playwright himself, is thus constituted primarily by a desire to give oneself absolutely to the other that cannot be known, a desire that may determine institutionalized monotheisms but is not equivalent to them, and a desire that is inextricably intertwined with a secular or existential worldview. The inability of scholarship to locate Shakespearean drama precisely on the Christian spectrum stems, then, not from a secular tendency in the playwright, but from an almost hyper-religious one, one that pushes back to the ancient mystery of Genesis 22, a “hyper-religious” passion that, structurally speaking at least, presses very close to our own secular worldview and, in particular, our own (supposedly) secular ethics grounded in a respect or openness to the “other.”

I want to test this hypothesis here on the play that seems the most at odds with both any pre-Christian “Abram/Abraham” and our current secular ethics: *The Merchant of Venice*. In many ways, the play engages the most violent forms of Christian typology, rereading Judaism in general and certain figures in particular, like Abraham, from the Hebrew bible simply as prefiguring Christian salvation.⁶ Correspondingly, the play’s treatment of Shylock the Jew and, in particular, the forced conversion to Christianity he experiences, directly contradicts the prime directive of our ethics: you must respect the difference of the “other.” Derrida’s work allows us to see, however, that the play’s profound religious desire for the Abrahamic gift interrupts and interferes with its own, often violent and hypocritical early modern Christian allegorizing in a way that simultaneously turns us back to the ancient mystery of Abraham and Isaac, and points forward—albeit briefly—to a postmodern desire for alterity, a postmodern respect for the individual subject that is not subsumed entirely by dominant political and cultural forces. The test of the hypothesis is especially rigorous, I should point out, because this rather “Derridean” hypothesis requires me to challenge Derrida himself. That is to say, one implication of my reading here is that in Derrida’s brief reading of *The Merchant of Venice* in “What is a ‘Relevant’ Translation?” he seems to have missed his own Abrahamic point.⁷

So: in its juxtaposition of a calculating, economizing Jew, Shylock, seemingly obsessed with the law, and a notably “giving” Christian, Antonio, *The Merchant*

⁵ See, in particular, Natalie Zemon Davis, *The Gift in Sixteenth-Century France* (Madison: University of Wisconsin Press, 2000), who writes, “in a profound sense, the religious reformations of the sixteenth century were a quarrel about gifts, that is, about whether humans can reciprocate to God, about whether humans can put God under obligation, and about what this means for what people should give to each other” (100).

⁶ For a recent and brilliant treatment of these issues see Lisa Freinkel, *Reading Shakespeare’s Will: The Theology of Figure From Augustine to the Sonnets* (New York: Columbia UP, 2002).

⁷ Jacques Derrida, “What is a ‘Relevant’ Translation?” trans. Lawrence Venuti, *Critical Inquiry* 27.2 (2001), 174-200. See, also, Oona Eisenstadt’s essay in this volume of *JCRT*.

of *Venice* clearly participates in Christian propagandistic discourse dating back to the post Pauline politics of the first century. Juxtaposing the giving, an-economic Christian to the exchangist, law obsessed Jew was one way early Christianity created itself. On one level, the virulence of the play's anti-Semitism can be understood as a Reformation reading of these ancient Christian origins. In other words, *The Merchant of Venice* can be seen as a dramatic effort to realize the perfect unconditional "Christian" love or capacity for giving love that John, in particular, often contrasted with the attitudes of the Pharisees.⁸ The play seemingly seeks to identify this notion of perfect love by contrasting true "Christian gifts" with "Jewish exchange and economizing."

This strategy fails on close reading, of course, as all the Christian "gifts" in the play reveal themselves to have economic entanglements of some kind. All the Christian gifts turn out not to be true gifts but rather compromised versions of the gift, hopelessly entangled in economies, exchanges, etc. Indeed, in some sense, Shakespeare seems to highlight the limitations of these gifts. Antonio's famous generous gift of his "credit" to Bassanio that opens the play, for example, is tied to his complicated feelings for Bassanio. Antonio gives *for* something and this hidden economizing on his part compromises the nature of his generous gesture. We note, for example, that he never offers to simply cancel Bassanio's debt to him. This would not solve all of Bassanio's problems but it would certainly help and certainly would have illuminated even more strikingly his supposed generosity.

This is not to suggest that Shakespeare wants us to be overly suspicious and critical of Antonio's generosity. Antonio is surely generous in offering his credit. Shakespeare does, however, seem to want to call into question the distinction between a certain everyday, even extraordinary generosity like Antonio's and an absolute, almost impossible to think generosity ("the gift"). Antonio's "generous" offer of credit that sets the play in motion is suspect, but only in the context of the impossible gift, the gift without return, the gift that risks everything. Antonio, in fact, does not believe himself to be "hazarding" or giving anything, expressing confidence at least twice that his wealth is safely intact and growing (1.1.41-45; 1.3.155-58). We must continually remind ourselves that it is only his unexpected loss of ships that amplifies—indeed transforms—the nature of his generosity from a calculated, economical gesture of friendship to a total and complete "gift" of himself, a gift of death. I won't argue the point in this essay, but one could say that Antonio only fully and horrifically realizes the nature of true or absolute giving when his ships are so suddenly and unexpectedly lost. This relatively undiscussed and unanticipated act or event of "nature" in the play potentially illuminates for us (and perhaps for Antonio) the distinction between giving and *giving* and, I will try to show, strikingly parallels a transformation in relation to divine economics that Shylock undergoes in Act Four.

⁸ For a lucid and clear discussion of this progression with particular reference to Abraham see Jeffrey S. Siker, *Disinheriting the Jews: Abraham in Early Christian Controversy* (Louisville: Westminster/John Knox Press, 1991).

The limitations, violence and hypocrisy of the play's Christianizing effort to give is realized most distinctly and most powerfully, of course, in Act Four when the Christians try to extract from Shylock the true gift—in the form of a perfect and almost impossible to conceive act of mercy or forgiveness—they themselves have failed to produce the whole play.⁹ “Then must the Jew be merciful,” Portia insists (4.1.180). Shylock himself reveals the apparent contradictory nature of this Christian “mercy.” The gift they seek here is not a true gift, a free gift, but one that can only be realized in a violent economy: “On what compulsion must I” be merciful Shylock asks (4.1.181). This violent hypocrisy is even more apparent in a subsequent moment in the scene when Shylock is suddenly and surprisingly charged with the criminal offense of seeking the life of a citizen (4.1.350) and forced to convert to Christianity (4.1.389). Before this point, we must recall, he was only involved in a civil contract case, a hearing.

For many, if not most, the “forced conversion” of Shylock leaves the play horrifically situated in the post Pauline Christian discourse mentioned above, beyond salvaging for a modern audience. Even if one argues, like Rene Girard, that the play self-consciously exposes rather than indulges a certain economizing hypocrisy at the heart of Christianity one is left with a reading that condemns Christianity as “too Jewish,” a reading that perversely condemns Judaism in an attempt to condemn Christianity.¹⁰ This early modern comedy, then, has become in some sense tragic. Honest critical appraisal generally admits that only some residual bardolatry or some sense that something can be learned—in the negative—from this dramatic gesture keeps the play circulating.

This is not to say that nuanced, intelligent, and productive arguments about the forced conversion are not possible. Most recently, for example, Julia Reinhard Lupton brilliantly has shown how Shylock's troubling “discontented contentment” and the loss of his Jewishness is actually a historical condition for modern citizenship writ large.¹¹ In order to make this claim she reminds us of the historical trajectory of Jewish citizenship in Europe, the process wherein Jews were “emancipated” from distinctive, separate “corporate identities” in medieval and early modern Europe to “full citizenship” in the nineteenth-century. In this context, then,

Shylock undergoes not so much a forced conversion as a nominal or procedural one; his reluctant consent is measured and limited, like the rule of law itself . . . however ambivalent we may feel about Shylock's conversion, there is *nothing tragic* in

⁹ For a consideration of forgiveness in relation to the impossibility of the gift see Derrida, “To Forgive: The Unforgivable and the Imprescriptible” in *Questioning God*, eds. John D. Caputo, Mark Dooley, and Michael J. Scanlon (Bloomington: Indiana UP, 2001), 21-51.

¹⁰ See Richard Halpern, *Shakespeare Among the Moderns* (Ithaca: Cornell UP, 1997) for an extended critique of Rene's Girard's often discussed essay “To entrap the Wisest: A Reading of the *Merchant of Venice*.”

¹¹ Julia Reinhard Lupton, *Citizen-Saints: Shakespeare and Political Theology* (Chicago and London: University of Chicago Press, 2005).

his destiny. We would prefer that Shylock had been offered citizenship without conversion, yet such a choice is only conceivable from across the historical divide of Jewish emancipation, whose success was predicated on the dissolution of the traditional corporate privileges of Europe's Jewish communities. Before emancipation, naturalization was unthinkable without conversion, not only because Christianity was so hegemonic, but because being a Jew meant belonging to a separate political entity (a legacy from Roman law). While it is easy to deplore Shylock's conversion as a forced one, that is because formal emancipation of the Jews into citizenship is so thoroughly entrenched in our contemporary modes of affiliation that we are no longer cognizant of the systematic transformations in the nature of Jewish collective life that emancipation itself entailed—namely the corporate self-rule (the many estates and bodies of Europe's ancient regimes) by political representation in a larger entity (the modern state). When Portia strips Shylock of his corporate privileges and Antonio offers naturalization in its place, the play begins not only to imagine the foundations of Jewish emancipation, but also to calculate its costs. Emancipation, too, can be framed as a loss of sorts—another scene of death into citizenship—but, like Shylock's life story, it, too, is not simply a tragedy.¹²

What the play conjures, then, is not so much a hypocritical and tragic universalism, but a "limited universalism," one disturbingly familiar to almost all citizens of modern nations who exist in a state of "discontented contentment," aware at once of a sense of belonging and not belonging to a greater whole. Lupton's reading eschews both bardolatry and a reliance on the play as a negative example. In short, as a treatment of the forced or "procedural" conversion I find this reading remarkably persuasive, one that opens the play's current "tragic" state to even more possibilities.

For example, in concentrating on this single moment of procedural conversion I am prompted to reflect on the simple fact that the notorious "trial" scene alone is made up of many moments, related but still distinctive moments, moments that threaten to blur into one another and ultimately collapse into this single moment of procedural conversion. As just noted, for example, Shylock is pressed to be merciful in the civil contract case before he is charged with a criminal offense. As Lupton points out, "the play moves quickly" as it shifts from the civil hearing on contracts that opens Act Four to the criminal indictment that leads to Shylock's conversion.¹³ It seems to me that in this rapidly moving scene we, too, might move too quickly. The character that commands the audience's attention in this scene, Portia, is constantly telling everyone on stage to "tarry," to slowdown, and perhaps we should. I am particularly concerned about pacing, of

¹² Lupton, *Citizen-Saints*, 101.

¹³ Lupton, *Citizen-Saints*, 96.

course, because the instant of the Abrahamic gift, the impossible moment of the gift Shakespeare has been seeking throughout the whole play, if it appears, flashes quickly, interrupts and breaks apart time itself, and would be easy to miss even for the most astute readers.¹⁴

We will not only slow down, then, but back up a bit. The scene opens, more or less, with the Duke pressing Shylock to be merciful and forgive the bond:

Shylock, the world thinks, and I think so too,
That thou but leadest this fashion of thy malice
To the last hour of the act, and then 'tis thought
Thou'lt show thy mercy and remorse more strange
Than is thy strange apparent cruelty;
And where thou now exacts a penalty,
Which is a pound of this poor merchant's flesh,
Thou wilt not only loose the forfeiture,
But, touched with human gentleness and love,
Forgive a moiety of the principal. (4.1.-27)

The speech concludes with a violent pun: "We all expect a gentle answer, Jew." We must acknowledge that this is, in part, a threat, a hint at the demonstration of sovereign power yet to be fully demonstrated, especially in that what actually happens meets the Duke's "expectations" perfectly.

Intriguingly, however, we must also acknowledge that this threat takes, in part, the form of a prophecy, an expression of what is to come, or of what is expected to come—but in a form that is not yet known. That is, I want to take seriously and literally and even prophetically the Duke's suggestion that Shylock will wait "To the last hour of the act" before then showing a "strange" remorse and mercy, a mercy and remorse so strange, I would add, that scholarship—particularly a scholarship still invested in a certain Shakespearean secularism—has struggled to recognize it.

In brief, the dominant critical assumption has been that the "mercy" the Christians look for in the play does not turn up, does not show itself, either in the Christians or in Shylock. Shylock refuses Christian demands and only the forced or procedural conversion of the trial resolves the irresolvable tension between law and mercy on display. And this resolution, as suggested, is then judged disingenuous or inauthentic and certainly violent. Mercy, the true gift, eludes the play. At best, as Lupton argues, we have procedural "discontented contentment." But is this so?

To answer this we must move, as I said, slowly through the trial scene. Portia first traps Shylock by pointing out that the bond provides for "no jot of blood."

¹⁴ See Derrida's consideration of the gift and time in *Given Time: 1. Counterfeit Money*, trans. Peggy Kamuf (Chicago: U of Chicago Press, 1992).

"Tarry a little," she says, famously calling attention to the crucial matter of pacing here:

There is something else
 This bond doth give thee here no jot of blood;
 The words expressly are 'a pound of flesh.'
 Take then thy bond, take thou thy pound of flesh,
 But in the cutting it if thou dost shed
 One drop of Christian blood, thy lands and goods
 Are by the laws of Venice confiscate
 Unto the State of Venice. (4.1.303-310)

Shylock immediately recognizes his suddenly new situation in relation to the law and unhesitatingly seeks a way out at this point; he tries to take Bassanio up on his earlier offer to "pay the bond thrice" (4.1.315). But Portia reiterates and specifies the demand of the law here, ruling out Bassanio's offer that would have concluded the matter then and there: "The Jew shall have all justice. Soft, no haste/ He shall have nothing but the penalty" (4.1.337). This remark follows her suggestion a few lines earlier that Shylock shall have "justice, more than thou desir'st" (4.1.314).

What happens next—and how this next moment differs from both the one we have just examined *and* the later moment of "procedural" conversion—is what fascinates me. Immediately after Portia tells Shylock that he shall have nothing but the penalty she presses the demand of the law in a shocking and disturbing way, shocking and disturbing not just to Shylock, but to everyone on stage and to a great many audiences prepared to enjoy a "comedy":

Prepare thee to cut off the flesh.
 Shed thou no blood, not cut thou less nor more
 But just a pound of flesh. If thou tak'st more
 Or less than a just pound, be it but so much
 As makes it light or heavy in the substance
 Or the division of the twentieth part
 Or one poor scruple, nay, if the scale do turn
 But in the estimation of a hair,
 Thou diest, and all thy goods are confiscate. (4.1.322-330)

Unlike the immediately prior demand of the law to not take any blood in the taking of a pound of flesh, *this* new demand or call of the law catches the usually fast thinking and fast talking Shylock off guard. We must, then, take this new formulation of the law seriously: Shylock is no longer prevented from killing Antonio because of consequences Shylock might suffer, but, instead, he is called by the law to kill Antonio whether he wants to or not. Unlike the earlier moment when Shylock immediately recognized his circumstances, he hesitates here, at this second moment. And it is Portia, who, again, has been asking everyone to slow down, who calls attention to the moment when Shylock finally does slow

down: "Why doth the Jew pause?" She then, again, presses the new command of the law: "Take thy forfeiture" (4.3.333). Exactly how long Shylock pauses here, suspended by this new strange demand of the law to give death, is a matter of theatrical interpretation. But Shylock does, uncharacteristically, pause.

Despite Gratiano's continued comic cheerleading (4.1.331-32) at this point, we must admit that there is a dramatic instant when Shylock might go ahead and follow the Law and kill Antonio even if this means enacting his own death sentence. This possibility, in fact, creates much of the dramatic energy of the scene. Indeed, Gratiano's words can be read as breaking the dramatic tension, a realization on his part at least that Shylock will resist the call of the law and not kill Antonio. Perhaps Shylock lowers his knife and this cues Gratiano's taunting about "A second Daniel." Perhaps even Portia has been holding her breath, waiting to see what Shylock will actually do, before calling attention to Shylock's "pause" (4.1.333). But we must acknowledge that it is at this instant that the comedic passes closest to the tragic, not later on when the Duke intervenes with his sovereign gesture and "pardons" Shylock (4.1.366). Of course, after a reasonable period of stage time Shylock must try to walk away, this time on substantially reduced terms: "Give me my principal, and let me go" (4.1.333). But we must attend to the instant when he pauses.

And, moreover, we must not move to quickly through this pause, this hesitation, and say or think simply that Shylock "chooses" his own safety here over the call of the Law (and his own desire to kill Antonio). The simple fact of the matter is that we do not know what happens in this moment when Shylock hesitates. Shakespeare neither tells us, nor shows us. On this crucial matter Shakespeare and Shylock, Shylock and Shakespeare, like Abraham, remain silent.

Shakespeare does provide some context for approaching this "pause." Immediately before this moment, again, he reminds us that Shylock is sharp and fast enough to realize his own "legal" situation; that is, Shylock knows the press of law in this civil contract hearing is limited. In other words, there is no compulsion, no sovereign decision (yet), no real force of law pressing on him when Portia insists he is contractually entitled only to a pound of flesh and not a jot of blood. Shylock, again, knows enough, and thinks quickly enough, to simply try to negotiate the best deal he can under this new interpretation of the contract and renegotiate terms. So it would seem likely he would also know that he is really in no greater bind here, only a moment later. Nonetheless, Shylock hesitates, and he hesitates where he has not done so before, even though his legal circumstances have not changed a jot.

Portia, again, marks the change in pacing, the change in time. Instead of saying tarry, tarry, wait, wait, she suddenly says hurry up, why are you waiting. She will return to her more regular pacing shortly to indict Shylock on criminal charges—"Tarry, Jew, the law has yet another hold on you!"—but here there is a break or rupture in the dramatic time Shakespeare, through Portia, has been counting for us.

It is entirely possible, I want to suggest, that in this instant Shylock recognizes for the first time that his innermost desires to kill Antonio are not, strictly speaking, his own, that the law—the Law as a strangely religious other—calls him and has a hold on him. In short, the moment reveals Shylock's "decision" to extract a pound of flesh from Antonio with his dagger is not, properly speaking, his own either or, at least, not solely his own—even though Shylock has been acting as if he exerts some control over the law. That is, Shylock, like the Christians, through much of the scene, believes he is *choosing* to follow the Law. But at work in this play is a sense of Law other than law as man made device to resolve; there is a sense of the Law beyond law, there is religious Law, something altogether other.¹⁵

In some sense, of course, Shylock has recognized or hinted at the religious demand of the Law in this sense before. "An oath, an oath! I have in heaven" (4.1.226) he cries a bit earlier when he presses for the contractual agreement to be enforced. But, again, *that* earlier moment in this fast moving scene is different from *this* moment. Here, at lines 330 or so, I am suggesting, Shylock suddenly realizes the Law has a hold of him distinct from his desires, that the religious Law has hold of him. Here he realizes that he does not have hold of the Law, but that the Law has hold of him. He realizes, this time without ironic distance, that he indeed does have an oath in heaven. And, I think, he begins to realize the "fear and trembling" such an oath engenders.

The play has tried to suggest throughout that any demanding call of the Law is "Jewish," but the play cannot help but also reminds us in this intense moment when Portia presses Shylock to plunge the knife into Antonio that the law is in some sense "Christian," too, imposed by the Venetian court, necessary to sustain the legitimacy of the Venetian state. Neither specifically Christian, nor Jewish, I would suggest that the play reveals a law—the Law—comes from someplace else. The Law is "other." Derrida's recent "pre-definition" of religion is helpful here.

However little may be know of religion in the *singular*, we do know that it is always a response and responsibility that is prescribed, not chose freely in an act of pure and abstractly autonomous will. There is no doubt that it implies freedom, will and responsibility, but let us try to think this: *will and freedom without autonomy*. Whether it is a question of sacredness, sacrificiality or of faith, the other makes the law, the law is other: to give ourselves back, and up, to the other. To every other and to the utterly other.¹⁶

¹⁵ See Jon D. Levenson, "Abusing Abraham: Traditions, Religious Histories, and Modern Misinterpretations," *Judaism* 47.3 (1998), 259-279.

¹⁶ Jacques Derrida, "Faith and Knowledge: the Two Sources of 'Religion' Within the Limits of Mere Reason," in *Religion*, eds. Jacques Derrida and Gianni Vattimo (Stanford: Stanford University Press, 1998), 1-78, 34.

Let me put this another way, specifically the way of Genesis 22: in that earlier moment of the scene when Portia limits the contract to flesh without blood Shylock experienced no “fear and trembling” at the call of the Law in part because he did not fully recognize it as such. At that point Shylock still experiences himself as in control of the (man-made) law, even though Portia’s ruling has turned against him. He still believes he can negotiate a good deal and flee. In the (momentarily) later Abrahamic instance, however, Shylock suddenly and newly recognizes the utter strangeness and alterity of the call of the Law, the call of the Law to give death, a call that demands he act utterly and completely against his own self-interests. In other words, Shylock suddenly and subtly finds himself in something more like the actual position of Abraham in Genesis 22—called to give death even though it will cost him everything—rather than in the position he believed himself to be in: someone with the Law on his side, an Abraham with a license to murder—not a son—but a hated enemy.

I am suggesting that, like Kierkegaard’s Abraham or, more precisely, the reader of Abraham trying to come to terms with Abraham’s actual position in Genesis 22, Shylock is momentarily paralyzed in Act Four by the call of the other, caught up short and unexpectedly by the Law which he thought he knew. To reiterate, the usually fast talking, hard driving Shylock hesitates at this Abrahamic instant, called to give death even though it means his utter ruin. Portia, who has been urging him to tarry asks “why doth the Jew pause?” In this context, then, the question could be reread as an implicit taunt. The true Abraham, Portia (and Shakespeare) knows, does not hesitate, he does not calculate. He acts, like Shylock normally does, unhesitatingly. In Genesis 22, Abraham immediately responds “Here I am” (*hineni*) and destroys (or almost destroys) everything of value to him.

That is one interpretation, at least, of Genesis 22. Another interpretation, however, that we must consider in light of Shylock’s unusual pause, emphasizes the fact that Abraham responds as quickly to the second call of God, the call that stays Abraham’s hand. As Levinas writes, challenging Kierkegaard directly, “Perhaps Abraham’s ear for hearing the voice that brought him back to the ethical order was the highest moment in the drama.”¹⁷ Shakespeare gives us no indication that Shylock receives any comparable second call. But, again, we should refrain from making any hasty judgments. Shylock does walk away, he does not respond to the call of the Law to kill. Consequently, we must keep open the possibility that mercy, grace, a gift appears in this instant, a mercy, grace, and gift that is not distinctly Christian, but tied to Abraham and Genesis 22, and the fear and trembling before the otherness of the Law.

Certainly, again, Shylock doesn’t show or manifest any such mercy, any such gift. But, in this context, that might not tell us very much. Any manifestation of the gift would annul, render it economic calculated, etc.—something like all the hypocritical Christian giving he (and the audience) has seen so far. As

¹⁷ Emmanuel Levinas, *Proper Names*, trans. Michael B. Smith (Stanford: Stanford UP, 1996), 74.

Kierkegaard puts it, “Abraham cannot speak, because he cannot say that which would explain everything (that is, so it is understandable).”¹⁸ To speak would be to explain God. This mercy, if it appears, must—as the Duke prophesized—be even “more strange” than Shylock’s “apparent cruelty.” That is, the mercy, if it appears, must be called for by the Law, the Other.

Let me be clear on this point. I am not suggesting Shylock undergoes a hidden Christian conversion or pre-conversion of some kind before his forced or procedural conversion and in some sense, then, “authentically” forgives Antonio without showing us. On the contrary, I am suggesting the possibility (of the impossible) that an Abrahamic moment of mercy, gift, or grace distinctly not Christian happens here, one that has little to do with Shylock’s volition. Indeed, the strong dramatic suggestion in this strange instant seems to be that it is no more Shylock’s choice to be merciful than it is Shylock’s choice to kill Antonio. The Law calls for the latter—that is certain—and because Shakespeare foregrounds this call to give death so strikingly we must consider the possibility that the Law, strangely, calls for the former as well. That Shylock might in fact want to extend a certain form of mercy only to save himself is no more relevant to the otherness and the demand of the Law than the fact that his initial desire to kill Antonio coincides with the call of the Law to give death. In fact, Shylock argues the utter irrelevance of his own desires at an earlier moment in the scene with ferocious humor.

You’ll ask me why I rather choose to have
 A weight of carrion flesh than to receive
 Three thousand ducats. I’ll not answer that,
 But say it is my humor. Is it answered?
 What if my house be troubled with a rat
 And I be pleased to give ten thousand ducats
 To have it baned? What, are you answered yet?
 Some men there are love not a gaping pig,
 Some that are mad if they behold a cat,
 And others, when the bagpipe sings I’ the nose,
 Cannot contain their urine; for affection,
 Mistress of passion, sways it to the mood
 Of what it likes or loathes. Now, for your answer:
 As there is no firm reason to be rendered
 Why he cannot abide a gaping pig,
 Why he a woolen bagpipe, but of force
 Must yield to such inevitable shame
 As to offend, himself being offended,
 So can I give no reason, nor I will not,
 More than a lodged hate and a certain loathing
 I bear Antonio, that I follow thus
 A losing suit against him? Are you answered? (4.1.40-62)

¹⁸ *Fear and Trembling*, 115.

Shylock tries to remind the court of what the law calls for here—what he wants or desires he tries to keep more or less separate from the discussion: “I am not bound to please thee with my answers” (4.1.65). His own anger and hurt seeps out more poignantly because that pain actually mitigates the iron clad claim of the law. His personal motivation he knows in this court, would cloud, rather than reinforce, the basis for his claim, the absoluteness of the contract.

All this is to say, perhaps, that the Law and what the ultimately calls for in this play—including a very strange mercy—is God’s business or, at least, that is how Shakespeare sees it. Portia hints as much in the first part of her remarkable speech on mercy:

The quality of mercy is not strained.
It droppeth as the gentle rain from heaven
Upon the place beneath. It is twice blest:
It blesseth him that gives and him that takes.
’Tis mightiest in the mightiest; it becomes
The throned monarch better than his crown.
His scepter shows the force of temporal power,
The attribute to awe and majesty,
Wherein doth sit the dread and fear of kings.
But mercy is above this sceptered sway;
It is an attribute to God himself;

Now, of course, as Derrida points out with great elegance, what seemingly counts for the Christians in the play is less the utter strangeness of the divine and distant “attribute to God himself” and more “the resemblance, the analogy, the figuration, the maximal analogy, [the] sort of human translation of divinity” that takes place between an absolute, perfect, impossible gift of mercy (“an attribute to God himself”) and an ordinary human act of mercy.¹⁹ So, in the second part of this speech, when Portia and the court calls on Shylock to “season” justice with mercy, we must be ever vigilant as Derrida insists because they are all calling for a *specifically Christian* translation or sublimation of this inaccessible mercy or gift originally suggested: “earthly power doth show likest God’s/ When mercy seasons justice.” It is the “likest God’s”, in short, that we need to suspect. The gift itself—if it exists—remains distant and distinct. As Derrida writes,

This analogical—and Christian—articulation between two powers (divine and royal, heavenly and earthly), insofar as it passes through the sovereignty of mercy and the right of grace, is also the sublime greatness that authorizes or enables the authorization of every ruse and vile action that permit the lawyer Portia, mouthpiece of all Shylock’s Christian adversaries from the merchant Antonio to the doge, to get the better of the

¹⁹ Derrida, “What is a ‘Relevant’ Translation?”, 198.

Jew, to cause him to lose everything, his pound of flesh, his money, even his religion.²⁰

Shylock, Derrida says correctly, resists "this transcription, this transaction which is a translation, this *relève*" and in so doing "delivers himself into the grasp of the Christian strategy, bound hand and foot."²¹

But in our wariness of "Christian" Hegelian sublation we should recall the first and one of the still most powerful philosophical challenges to the Hegelian gesture. Kierkegaard's reading of Genesis 22 and Abraham was specifically intended to unsettle the dominance of Hegelian thought in 19th century Europe. For Hegel, of course, identity and difference, self and other, pass into one another, and thus ultimately there is no difference, there is no "Other" – no "justified incommensurability" – in his dialectical logic. There is ultimately only a same or self and the other gets "translated" into that same or self. In Abraham, then, Kierkegaard specifically seeks to identify a figure who eludes this Hegelian universal "self-contained sphere", suggesting a relation to the Absolutely Other.²² That is, to the extent Derrida reveals the pre-Hegelian strains in Shakespeare's "Christianity" we must attend to the pre-Kierkegaardian strains as well. In Act Four, when Shylock pauses, and perhaps encounters a mercy "more strange" than his strange apparent cruelty, Shakespeare already may have provided a "Kierkegaardian" Abrahamic counter to the "Hegelian" threat.

Relating Abraham to Shylock in this fashion is not predicated simply on the call to give death that haunts Act Four. Earlier in the play, we recall, Shylock had come fairly close to assuming for himself the authority or role of "holy Abram." In Shylock's initial (staged) encounter with the Christians he articulates one possibility to simultaneously live in and apart from the Christian world (1.3.70). This possibility derives from "Abram" and the story of Laban. Shylock offers, as Lupton suggests, a "midrash" that presents a Jewish economy every bit as legitimate as the Christian economy and resists the charge of usury.²³ For Shylock here and, it would seem, for Shakespeare, Abram suggests a means to preserve a certain religious subject formation in this world that seeks to do it harm; Abram suggests a means to preserve the marginalized, particular "other" in the face of Christian (Hegelian?) universalizing impulses. Abram/Abraham here then also suggests the gift, the possibility of the impossible, a non-violent, an-economical relationship between self and other in which neither has an advantage.

²⁰ Derrida, "What Is?" 198.

²¹ Derrida, "What Is?" 199.

²² *Fear and Trembling*, 68.

²³ Julia Reinhard Lupton, "Exegesis, Mimesis, and the Future of Humanism in *The Merchant of Venice*," *Religion and Literature* 32.2 (2000), 123-139, 134 in conjunction with Lars Engle, "'Thrift is blessing': Exchange and Explanation in *The Merchant of Venice*" *Shakespeare Quarterly* 37.1 (1986), 20-37.

Shakespeare, of course, recognizes “the impossibility” he must confront in attending to the Abrahamic as such. The offer of two distinct economies coexisting is immediately rejected by Antonio. And, almost immediately after raising the possibility of the impossible in the figure of Abraham, Shakespeare undermines Shylock’s (and his own) “Abrahamic” strategy entirely. When Bassanio and Antonio hesitate at Shylock’s offered “bond,” the pound of flesh, Shylock responds (1.3.159-169)

O father Abram, what these Christians are,
Whose own hard dealings teaches them suspect
The thoughts of others!
To buy his favor I extend this friendship.
If he will take it, so; if not, adieu.
And for my love, I pray you, wrong me not. (1.3.159-169)

Here Shylock again portrays “Abram” as the exclusively Jewish patriarch, but one whose lineage nevertheless bespeaks an openness to the non-Jewish world. This openness is, in fact, characterized by its appealing live and let live attitude, neither seeking nor conceding an advantage in the economy of relationships. The “bond,” Shylock suggests, is “merry,” worthless. As described by Shylock, it contains a certain an-economic purity, of no value, a gesture of pure friendship, an openness to the “other.” The obvious complicating factor to this openness of Shylock’s “father Abram” expressed here (and in perhaps in the earlier moment) is that Shakespeare reveals Shylock’s true thoughts on the matter (1.3.38-49). He hates the Christian and is using this Abrahamic language as a Machiavellian mask of some kind, concealing his true intent of punishing Antonio in some way (1.3.38-49). “Abram” in this instance is merely something that Shylock can use as a weapon, a means of concealing his own violent intent.

In brief, in his larger attempt to locate the “gift, the impossible” Shakespeare has been contemplating Abram/Abraham from the play’s earliest moments. More specifically, he has been contemplating Abram/Abraham in relation to Shylock’s understanding of Abraham. In Act Four, then, I am suggesting, Shakespeare puts Shylock in the very Abrahamic position Shylock had been exploring or examining earlier. Only this time, Shakespeare puts Shylock in the position of Abraham to clarify the complexity, the difficulty, the impossibility of engaging the other an-economically, without violence—a complexity that Shylock discovers, if he discovers it, alone and in isolation.

In this context, Portia’s subsequent insistence on the law protecting Venetian civilians is purely gratuitous. And the “forced” conversion, as Lupton suggests, is just a procedural gesture having little to do with Shakespeare’s religion or religion writ large. The religious, as it were, is located elsewhere in the play, in the interrupted (non) time of Shylock’s pause.

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